

Saltmarsh Environmental Partners LLC

www.saltmarshenv.com

March 10, 2021

Robert Lopez

Director of Operations

Solis, Allen and Oconnell

Re: Stormwater Permit Support

Dear Mr. Lopez:

This letter follows our walk of the yard last month and sets down the terms on which we will help you obtain coverage under the stormwater permit your operation now requires and put the plan behind it into working order. I have written it so that the scope, the schedule, and the terms sit in one place and none of them is left to memory. If it reads the way we discussed, please sign the enclosed copy where indicated and return it to this office; the countersigned copy is the agreement between us. We will begin the work for Solis, Allen and Oconnell on March 20, 2021.

Scope of Services

The work has four parts, and each follows from the one before it. We will first characterize the site as it discharges, walking the property to find every point where stormwater leaves it, mapping the drainage areas that feed those points, and recording the materials and activities exposed to the rain along the way. On that basis we will prepare the Stormwater Pollution Prevention Plan the permit requires, written to your operation as it actually runs and not to a form. We will then file for coverage on your behalf, assembling and submitting the notice of intent and the materials the agency expects with it. And we will stand up the monitoring the permit will hold you to, taking the first round of samples ourselves so that the baseline in the file is one we collected and can stand behind. The design of new stormwater controls, and the construction of any of them, are not part of this engagement.

Approach

We do not write the plan from the office and check the site against it afterward. Someone walks the yard first, because what is exposed to stormwater is a matter of what is actually out there on a working day, and the yard is where that gets read.

Where an outfall is hard to place, or a drainage area could be drawn two ways, we will say so and go back to look again before we commit to the tidy version. A plan that is honest about what it is still unsure of is one we can defend when a reviewer questions it later, and the sampling data behind it will be checked here before any of it is submitted.

Our Team

Two of our field technicians will do the site work. Heather Morton will run the sampling and the monitoring rounds; she holds a method steady from one visit to the next, which is the whole point of a baseline that has to stay comparable as the rounds go on. Joseph Nichols will handle the outfall survey and the field documentation, and he errs toward writing down more than less, which is what a record built to be checked wants. Among ourselves we use first names, but the names on anything that goes to the agency are the full ones, because that is the record that lasts. I read the plan and the sampling data myself before either leaves this office.

Schedule

We expect the work to run about four months from the start date above, allowing for the sampling to fall in usable weather and for the agency to take the time it takes once we have filed. The pace of the review after we submit is outside our hands, and we will not put a date on it. We will keep your office current as the work moves from the yard to the plan to the filing, so nothing about the schedule reaches you as a surprise.

Fees and Payment

Our fee for the work described above is \$110,500, and it covers the site characterization, the plan, the permit filing, and the first round of monitoring. We invoice monthly for the work performed in the period and for the out-of-pocket costs the work requires, chiefly the laboratory analyses on the stormwater samples, and any agency fees are passed through at cost. Invoices are due within thirty days of the date they are rendered. If the site or the agency calls for something outside what is described here, we will tell you and agree the cost with you before we do the work.

Term and Termination

This agreement begins on March 20, 2021 and continues until the plan is delivered, coverage is filed, and the first monitoring round is recorded, unless it is ended sooner. Either of us may end it on written notice to the other. If the work is stopped

before it is finished, you will owe us for the work performed and the costs incurred through the date the notice takes effect, and nothing beyond that.

Confidentiality

We will keep what you share with us in confidence and use it only for this engagement, with one limit you should understand at the outset. A stormwater permit is filed in order to be granted, and once the plan and the supporting data go to the agency they become part of a public record. Beyond what the filing itself places on that record, we will not disclose your information without your consent, except where the law requires it of us.

Limitation of Liability

Our services will be performed with the care and skill ordinarily used by environmental professionals practicing in this area under similar conditions, and we make no other warranty, express or implied. The plan and the application are our professional work; whether coverage is granted, and on what conditions, rests with the agency, which has the final say. Our liability to you arising out of this engagement, from any cause, will not exceed the total fee payable under this agreement, and neither of us will be liable to the other for consequential or indirect damages.

Governing Law

This agreement is governed by the laws of the state in which the site is located. It states the whole of our understanding on this work, replaces the discussions and correspondence that came before it, and may be changed only by a writing that both of us sign.

If this letter states our agreement correctly, please sign both copies where shown, keep one for your file, and return the other to this office. Once the signed copy is in hand we will call to set the first site visit. We are glad to be taking this on with Solis, Allen and Oconnell, and we will give the yard and the numbers the same care we give the reports that follow from them.

Very truly yours,

Angela Flynn

Managing Principal

Date: March 10, 2021

Robert Lopez

Director of Operations, Solis, Allen and Oconnell

Date: March 10, 2021